



## SOUTH KOREA'S ONLINE PLATFORM FAIRNESS BILL A NEW DIGITAL NONTARIFF BARRIER IN U.S.-ROK TRADE

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**T**he Online Platform Fairness Bill proposed in the Republic of Korea (ROK) National Assembly is less a targeted fix for demonstrable market failure than a sweeping expansion of regulatory authorities that would hand the Korea Fair Trade Commission (KFTC) significant powers to police routine platform business decisions, including for many leading American firms.<sup>1</sup> This proposal, which continues the on-again, off-again saga of ROK platform regulation proposals over the past several years, deepens existing U.S. government and industry concerns that KFTC enforcement lacks basic procedural safeguards and is discriminatory in practice.<sup>2</sup> The bill combines broad “unfairness” standards with significant financial penalties, while leaving key questions about scope and implementation to presidential decree. The result, if this bill is enacted, is a highly uncertain compliance and enforcement environment for platform policy that chills innovation. Moreover, the bill clearly goes against South Korea’s commitments to avoid unnecessary digital trade barriers and ensure nondiscriminatory treatment of digital service providers.<sup>3</sup>

On December 9, 2025, Representative Lee Jeong-moon, a member of the National Assembly, introduced the Online Platform Fairness Bill, the latest in a series of platform-specific legislative proposals. Representative Kim Nam-geun cosponsored the legislation, which is important to note, as he had sponsored prior versions of the bill that explicitly targeted U.S. firms. The Online Platform Fairness Bill would impose a wide set of obligations on online platforms, including settlement-related rules, contracting and transparency requirements, and open-ended conduct prohibitions. Many of the decisive details will be specified later through presidential decree, making it difficult to assess *ex ante* coverage and compliance burden.

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South Korea's stop-start efforts to regulate platforms over the last five years help explain why the U.S. government and technology sector are concerned about the Online Platform Fairness Bill. Early proposals were heavily shaped by the European Union's competition regulations under the Digital Markets Act (DMA) and then repeatedly revised amid domestic and U.S. pushback as well as high-profile corporate incidents that policymakers use to revise or reframe platform legislation. The EU's DMA is a problematic model as it shifts from the traditional, evidence-based antitrust standard that is based on proving consumer harm to a proactive "fairness" standard that disproportionately targets U.S. companies and imposes restrictive, ex ante regulations that stifle innovation.<sup>4</sup> Consequently, South Korea's platform policy target drifted over time. What began as a competition-adjacent response to alleged bargaining-power imbalances now reaches into practices that fall under the categories of financial settlement, custody, and merchant contracting—areas typically handled through financial supervision and sectoral rules rather than antitrust enforcement. Lawmakers also have not demonstrated that key precipitating (corporate) incidents cited to justify new legislation reflect a recurring pattern of platform governance failure rather than firm-specific liquidity and controls breakdown. The result is a regime that increasingly resembles a solution in search of a stable problem, which leads to increased expenses and heightened uncertainty for businesses.

Even if framed in terms of "transaction fairness," the law's real impact will be driven by the KFTC's enforcement posture and by Article 13's open-ended conduct rules. This is where uncertainty becomes consequential from a commercial and trade perspective. Many covered practices can be either abusive or efficiency-enhancing (e.g., fraud controls linked to payments, fulfillment bundles, advertising products tied to placement, or differentiated service tiers), depending on how presidential decrees define "unfairness" and how the KFTC applies

those standards on a case-by-case basis. That ambiguity is compounded by punitive penalties and due-process concerns.<sup>5</sup>

## **Flawed from the Start: The Long, Inconsistent Track Record of Platform Regulation Proposals**

South Korea's turbulent, nearly six-year effort to enact platform fairness legislation helps explain why the current proposal is seen as so concerning.<sup>6</sup> The policymaking process matters. Unlike the EU, the United Kingdom, Australia, Japan, and others that published analytical reports to support public debate, South Korea has repeatedly introduced, withdrawn, amended, and reintroduced proposals as political winds have changed and high-profile incidents have emerged and faded. Japan's mobile ecosystem legislation offers a sharp contrast. From late 2021 through mid-2023, Japan conducted a structured competition assessment—publishing an interim report for public comment (April 2022) and a final report (June 2023) after extensive stakeholder engagement—before drafting legislation, which helped narrow the scope and improve predictability.<sup>7</sup> Even if you disagree with Japan's decision to enact this new legislation, the process reduced arbitrariness and improved predictability for businesses. This is exactly what South Korea's current approach lacks.

The KFTC first proposed the Online Platform Fairness Act in 2020, framed around platform bargaining power and unfair conduct toward business users.<sup>8</sup> The move was abrupt and proceeded without a thorough consultation process. Much of the urgency appeared driven by senior policymakers seeking to track overseas models—particularly the EU's platform-to-business regulation and Japan's partial incorporation of platform-to-business concepts through its Act on Improving Transparency and Fairness of Digital Platforms.<sup>9</sup>

The 2021 Merge Point incident sharpened debate over intermediary platform accountability,

especially where platforms are deeply involved in ordering, payment receipt, and refunds. This crisis stemmed from the decision by Merge Plus (a digital coupon business) to restrict its Merge Point prepaid discount service (following regulatory concerns), leaving users unable to make payments and triggering a refund crisis.<sup>10</sup> Policymakers treated Merge Point not only as a prepaid-finance problem but also as a platform responsibility case study, arguing that existing rules were unclear about intermediary duties in payment and refund workflows. That pathway led to concrete legislative action in 2023, when the National Assembly enacted amendments to the Electronic Financial Transactions Act. Meanwhile, the KFTC's softer approach—platform guidelines—briefly advanced. The commission finalized draft guidelines in 2022, and they entered into force in early 2023 with relatively little controversy or revision, aside from the removal of a section on unfair trading practices. The guidelines largely reflected existing precedent rather than imposing new DMA-style obligations.

From 2022 to 2024, however, the policy focus swung back toward new legislation. The EU's DMA began applying to designated “gatekeepers” on May 2, 2023, and domestic events in South Korea, including the major KakaoTalk outage and scrutiny of Kakao T fee policies, intensified political pressure. Then the July 2024 TMON-WeMakePrice settlement crisis—where the firms held consumer payments without a third-party escrow-style structure and later faced insolvency—became a focal point of policy debate. Importantly, both firms were already supervised as payment gateway providers by South Korea's Financial Supervisory Service, which had signed agreements with them two years earlier due to concerns about deteriorating financial conditions.<sup>11</sup> That episode maps most naturally to financial and insolvency design—settlement custody and segregation rules, audits and disclosures, capital/escrow requirements—rather than classic fair-trade conduct issues. Consistent with that, in 2024–25 the National Assembly proposed further

amendments to the Electronic Financial Transactions Act targeting payment gateway providers (though they were not enacted), and the E-Commerce Act was amended to address platform accountability.<sup>12</sup> Yet lawmakers still used the TMON-WeMakePrice crisis to justify a new platform statute with the KFTC in the lead, even though settlement oversight sits closest to the Financial Supervisory Service and the Financial Services Commission.

The KFTC then attempted to revive the legislative initiative through the Platform Competition Promotion Act, explicitly citing the EU's DMA and Germany's Section 19a as reference points.<sup>13</sup> Like the DMA, Section 19a is a problematic model because it lets regulators designate a handful of “paramount” firms and then impose ex ante conduct bans with wide discretion and a lower effects burden, increasing uncertainty and spillover risk.<sup>14</sup> The KFTC proposal would have created presumptions of dominance across six categories (online intermediaries, search, digital content services, social networks, operating systems, and online advertising) using thresholds such as 60% market share and 10 million users, or 85% combined share among two or three firms with each exceeding 20 million users, with exemptions for firms under 4 trillion won turnover (around \$3 billion). In South Korea, these triggers would likely have captured a handful of firms—Google, Apple, Kakao, Naver, and possibly Microsoft and Meta.<sup>15</sup>

The process was again top-down. The KFTC did not publish the text of the bill or conduct broad stakeholder engagement. It also did not reflect the views of the KFTC's internal task force, which reportedly did not endorse DMA-style regulation. Korean and U.S. stakeholders criticized the process and outcome.<sup>16</sup> On September 9, 2024, the KFTC announced it would abandon the proposal.<sup>17</sup>

## How the Online Platform Fairness Bill Could Be Quite Unfair

*Scope and focus.* The Online Platform Fairness Bill adopts a platform-only scope (like the DMA) rather

than an activity-based one. It applies to platforms with annual revenue of 10 billion won (approximately \$6.9 million) or more from intermediary, advertising, or payment-related services and firms with annual sales of 100 billion won (approximately \$69 million) or more by participating merchants. It would cover many Korean firms (e.g., Naver, Kakao, and Baedal Minjok) and foreign firms (e.g., Coupang, Google, and Apple). The threshold is broader than prior proposals, but the conduct standards remain open-textured and discretion-heavy (see Article 13).

The Online Platform Fairness Bill does not focus on market structure but on specific payment-settlement and merchant-contracting practices:

- *Settlement discipline.* The bill makes platforms use statutory payout deadlines (generally within twenty days, with shorter timelines for certain services) where platforms manage sales proceeds.
- *Ranking and exposure transparency.* The bill requires platforms to specify in merchant contracts the standards governing product exposure order and format.
- *Transaction terms and unilateral changes.* The bill strengthens procedural safeguards for how key transaction terms are set and modified, including requirements that paid advertising and promotions be governed by separate written agreements, and allows merchants to organize collectively to better articulate their interests.

Unlike activity-based regulation, which targets specific functions and risks across comparable actors, a platform-only approach concentrates compliance burdens on large platforms that sit at the center of cross-sector and cross-border commerce. Even if facially neutral, the practical impact is predictable: the largest platforms, many of them headquartered in the United States, are likely to bear the overwhelming share of the burden from operational and financial compliance, while functionally similar intermediaries outside the statutory definition are unaffected.<sup>18</sup>

*Large punitive fines.* The Online Platform Fairness Bill allows for fines of up to 10% of sales revenue

if platforms engage in unfair practices. At an event in December 2025, Kim Tae-oh, a professor at Changwon National University's Law School, noted that the legislation—specifically the maximum 10% of sales and the fixed minimum fine of 5 billion won—“has a strong punitive character and carries a high risk of conflicting with the principles of liability and proportionality.”<sup>19</sup> This is especially sensitive from a trade perspective because U.S. firms appear to bear outsized penalties in practice. Although Korean National Assembly data shows that domestic firms recorded more violations from 2022 through the first half of 2025 Coupang paid the most fines, and Google's penalty for 2019–22 was comparable to (or exceeded) fines imposed across multiple Korean firms for more egregious cartel conduct.<sup>20</sup>

*Lack of judicial review of fines and corrective orders.* The Online Platform Fairness Bill applies surcharges of up to 10% of relevant sales through broadly framed “unfairness” standards (enforced by the KFTC), combined with expansive authorities to issue corrective orders. In some respects, this even goes further than the EU's DMA—where penalties apply to a narrowly designated set of gatekeepers under a defined obligations framework with clear judicial review—by creating comparable exposure to penalties under broader standards without a tailored appeals architecture for this new platform-specific regime.

The bill's penalty-and-remedy architecture also raises a practical judicial-review problem that reinforces existing concerns about the KFTC. Under South Korea's current framework, challenges to KFTC corrective orders and surcharges are generally litigated after the KFTC issues a final administrative disposition. This means judicial review is largely *ex post* and typically arrives only after the investigation has run its course. In short, the regime risks combining broad, decree-defined obligations with heavy penalty exposure while leaving firms with limited ability to obtain timely judicial clarification before commercial and reputational harms materialize.

*Broad and vague prohibitions of conduct beyond competition.* The Online Platform Fairness Bill goes beyond the sorts of conduct rules found in the EU's DMA and instead directly regulates things like settlement and custody mechanics. These obligations are unprecedented globally for nonfinancial platforms, especially when compared with the United States and EU (where similar requirements apply only to licensed financial institutions). Typically, digital antitrust regulations are designed to address potential exclusionary conduct, such as self-preferencing, that could distort competition. They do not prescribe market outcomes through measures like mandating settlement timelines, liquidity management, or safeguarding rules, which are not ordinarily addressed by competition law regimes.<sup>21</sup> In addition, even though the prohibited forms of conduct could be actionable under South Korea's existing competition law, this *ex ante* identification shifts the burden of proof to platforms and enhances the administrative power of the KFTC. The broad discretion the KFTC will possess to prosecute Article 13 violations will inevitably raise questions of discrimination—for instance, regarding why it chose to pursue certain practices from some platforms but not others.

Article 10 of the bill requires that, where a platform receives and manages sales proceeds, including where management is outsourced to an electronic payment processing entity, the platform must pay out merchants within a statutory deadline (20 days). The bill includes a phase-in period that temporarily extends the baseline payout deadline to 40 days in the first year after enforcement and 30 days in the second year.

Article 13 prohibits an online platform intermediary from engaging in (or inducing others to engage in) conduct that is likely to undermine “fair” transactions in platform intermediation. Unfair conduct includes unreasonably suspending, refusing, or materially restricting access to the platform's intermediation services (or related information/management support); unfairly discriminating among business users; unfairly

coercing a business user into transactions it does not intend; unfairly demanding money, goods, services, operational data, or other economic benefits for itself or affiliates; setting, changing, or implementing transaction terms in ways that disadvantage business users; improperly interfering with users' business activities; and unfairly imposing exclusivity or obstructing users' ability to transact with rival intermediaries. The detailed criteria and specific types of prohibited “unfair trade practices” are to be further defined by presidential decree.

Article 13 functions less like a targeted “platform to business fairness” rule and more like a general-purpose rule that gives the KFTC discretion over enforcement while leaving key boundaries to presidential decree. This combination is a recipe for legal uncertainty, with chilling effects on legitimate platform governance. Article 13's open-textured unfairness standards invite *ex post* second-guessing of routine governance choices about pricing/fees, access decisions, ranking, and risk controls, unless presidential decree supplies narrow criteria and clear safe harbors.

Article 13's provisions on forced transactions and exclusivity are aimed at problematic tying (conditioning access to a necessary platform function on buying another service) and lock-in (designing contractual/technical constraints that increase switching costs), but the same language can sweep in efficient integration that is central to platform performance. For example, this could be characterized as additionally covering payments linked to fraud/risk controls, fulfillment bundles that improve reliability, advertising products tied to placement, or standard commercial terms such as volume rebates and program tiers. As prohibitions are framed in open-ended unfairness terms and the boundary-setting is pushed to presidential decree, this becomes an area of high regulatory uncertainty: the law can end up treating normal competition on business models as suspect.<sup>22</sup>

*The uncertain application of future presidential decrees.* As noted above, the Online Platform Fairness Bill's real-world scope and impact will

be determined largely through future presidential decrees because the statute delegates core definitional and operational content to subordinate rulemaking. This is most consequential in two areas: scope and obligations. On scope, the coverage thresholds rely on revenue categories and ancillary services that will be further specified by decree, meaning the regulated universe can expand or contract depending on technical choices. On obligations, critical compliance mechanics are also left to decree, raising risks of moving goalposts, uneven sectoral tailoring, and recurring compliance friction. Article 13 is the clearest example: the statute delegates the operative unfair-practice criteria to decree, making enforcement exposure difficult to price *ex ante*.

*The KFTC's uneven enforcement record compounds concerns about the Online Platform Fairness Bill.* Articles 31–35 of the Online Platform Fairness Bill grant the KFTC broad enforcement powers, including corrective orders, daily penalties, and administrative surcharges. Articles 45–48 add criminal sanctions and other liabilities and fines. The KFTC's enforcement record compounds concerns about the Online Platform Fairness Bill because the legislation would expand the number of day-to-day business judgments that can be reframed as unfair. U.S. firms already view KFTC enforcement as selective and heavy-handed. Prior research published by the National Bureau of Asian Research documented that U.S. firms' central concern is not simply what South Korea regulates but how the KFTC enforces regulations, especially given the lack of due process and avenues for legal redress.<sup>23</sup> Firms consistently described a compliance environment marked by a low threshold for opening investigations, limited transparency about the underlying theory of harm, aggressive investigative tactics (including raids), and unusually broad information demands and data seizures—paired with the frequent use (or threat) of criminal referral as an enforcement lever. These are not abstract process critiques; they are precisely the kinds of features that convert an already broad fairness mandate into a highly uncertain and

high-cost regulatory risk for U.S. firms operating in fast-moving digital markets.

## **The Impact of the Bill on U.S.-ROK Trade and Innovation in South Korea**

The Online Platform Fairness Bill risks becoming another major irritant in U.S.-ROK digital trade by layering broad prohibitions on “unfair trade practices” onto cross-border platform activity and then vesting primary enforcement in a regulator that U.S. firms view as unusually aggressive and procedurally imbalanced. Some U.S. firms already see South Korea as a high-risk compliance market, leading them to delay new product entry and launches. This bill, if enacted, is likely to reinforce this perspective.<sup>24</sup>

In trade terms, the Online Platform Fairness Bill operates like a digital nontariff barrier. Even where the statute is facially neutral, uncertainty, coupled with discretionary application of broad conduct rules, creates asymmetric compliance and litigation risks that are likely to fall disproportionately on large U.S. platforms. There is an uncertainty premium as platforms cannot reliably predict what conduct will be deemed unfair, how compliance will be measured, or how penalties will be calculated until after presidential decrees and enforcement cases. That uncertainty increases legal exposure to complaints, investigations, and corrective orders, which in turn drives precautionary compliance (rewriting and executing merchant terms and conditions, redesigning integrations, and expanding internal review) and could deter the rollout of new features or business models in Korea. This leads to disproportionately high fixed compliance costs and expected enforcement risks for foreign suppliers at the center of cross-border commerce. The result is a market-access constraint “in effect,” even without an explicit nationality-based rule. This is exactly the kind of regulatory friction that trade policy treats as a nontariff barrier.

The innovation costs flow from the same mechanics. The Online Platform Fairness Bill contributes to a business environment in South Korea in which regulatory outcomes are less predictable and

commercial decisions are more exposed to ex post second-guessing. When core business judgments (e.g., integrations, ranking and access decisions, differentiated terms, and fraud controls) can be reframed as unfair under decree-defined criteria, firms will rationally slow iteration, reduce experimentation, and default to more conservative, uniform designs, while shifting resources from product development and security improvements toward process compliance, documentation, and legal defensibility. That tradeoff weakens service quality and localization and reduces the pace at which Korean users and small and medium-sized enterprises benefit from better trust-and-safety tools, payments innovation, and commerce-facilitating tools.

The same uncertainty also changes how firms allocate investment and operational attention across markets. Elevated regulatory risk raises the cost of treating South Korea as a launch and testing market, encouraging platforms to delay rollouts, narrow third-party access, or centralize decision-making in jurisdictions with clearer rules and more predictable enforcement. Over time, these ecosystem effects will slow the diffusion of frontier services into South Korea and reduce complementary innovation by Korean developers, merchants, and advertisers. The net result is that a law motivated by legitimate fairness concerns could still degrade the overall investment climate for digital services, which would erode trade confidence and the innovation dynamism that underpins South Korea's competitiveness and U.S.-ROK economic and technology cooperation.

## Options for the Trump Administration

The Online Platform Fairness Bill fits a pattern in South Korea's platform policy: ambitious, high-discretion proposals that later get narrowed, delayed, or abandoned after domestic pushback, market realities, and external scrutiny. The priority for the Trump administration should be to elevate the bill as a top-tier digital trade irritant in ongoing bilateral engagement to help ensure this becomes another instance where South Korea reverses course.

The policy objective is not to "win" a platform fight for its own sake; it is to prevent a high-uncertainty and discriminatory regime from hardening into enforceable rules that will predictably chill innovation and distort market access for globally integrated U.S. digital services.

This strategy also directly addresses the credibility gap created by South Korea's recent digital trade assurances. The Lee Jae-myung government committed in bilateral talks with the Trump administration in November 2025 to avoid discriminatory or unnecessary barriers to digital services. Almost immediately after that commitment was made, however, the National Assembly (in which Lee's Democratic Party of Korea maintains a sizable majority) restarted a process to enact legislation that would create precisely the kind of decree-defined compliance burden and enforcement discretion that firms experience as a de facto barrier. That juxtaposition underscores the core problem with the South Korean business environment: U.S. firms cannot plan investment, compliance, or product rollout when major regulatory obligations can be introduced abruptly, defined later by decree, and enforced aggressively, while firms have limited practical ability to obtain timely judicial review, assert legal defenses, or secure effective redress before commercial and reputational harm occurs.

The Trump administration should continue to treat the Online Platform Fairness Bill as a live trade irritant and keep it at the top of the digital trade agenda in ongoing negotiations. Both the U.S. Trade Representative (USTR) and U.S. Congress have made public statements that underscore how this bill contravenes South Korea's commitment to not enact discriminatory digital regulations.<sup>25</sup> The USTR should make clear that a final regime that discriminates in design or effect—or predictably burdens foreign suppliers through open standards and punitive penalties—could justify escalation, including a Section 301 response (as the USTR has already threatened).<sup>26</sup> ∞

## Endnotes

- <sup>1</sup> The full text of the bill is available in Korean at [https://likms.assembly.go.kr/bill/bi/billDetailPage.do?billId=PRC\\_C2C5B1B2J0J8I1G7H1F5G0O1O2N1N0](https://likms.assembly.go.kr/bill/bi/billDetailPage.do?billId=PRC_C2C5B1B2J0J8I1G7H1F5G0O1O2N1N0).
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- <sup>8</sup> The text of the proposed legislation is available in Korean at <https://www.moleg.go.kr/lawinfo/makingInfo.mo?lawSeq=60857&lawCd=0&&lawType=TYPE5&mid=a10104010000>.
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- <sup>14</sup> “Germany,” Cleary Gottlieb, <https://content.clearygottlieb.com/antitrust/digital-markets-regulation-handbook/germany/index.html>.
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- <sup>17</sup> The announcement is available in Korean at [http://www.ftc.go.kr/www/selectReportUserView.do?key=10&rpttype=1&report\\_data\\_no=10797](http://www.ftc.go.kr/www/selectReportUserView.do?key=10&rpttype=1&report_data_no=10797).
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- <sup>22</sup> Sung, “Re-proposal of Single Bill for Online Platform Fairness Act.”
- <sup>23</sup> Cory, “Understanding the Impact of KFTC Enforcement on U.S. Firms.” As Joe Coniglio at ITIF puts it, the discriminatory impact of the Online Platform Fairness Bill can be both *de jure* (with intentional targeting in the law itself) and *de facto* (with laws being enforced in a way that disproportionately harms American firms and thus evinces discriminatory intent even if the regulation itself is neutral on its face). See Coniglio, “Korea’s Proposed Fairness Act.”
- <sup>24</sup> Cory, “Understanding the Impact of KFTC Enforcement on U.S. Firms.”
- <sup>25</sup> Ari Hawkins, “Trump Admin to S. Korea: We’ll Launch Trade Investigation If You Pursue Digital Regulations,” Politico Pro, November 19, 2025, <https://subscriber.politicopro.com/article/2025/11/trump-admin-to-s-korea-well-launch-trade-investigation-if-you-pursue-digital-regulations-00658813>; Kim Eun-joong, “Exclusive: U.S. House Warns South Korea’s Law Discriminates against U.S. Tech,” *Chosun Daily*, January 7, 2026, <https://www.chosun.com/english/world-en/2026/01/07/FIASOG32TRGWBG4CL7ZXSRWYR4>; and Ari Hawkins, Phelim Kine, and Daniel Desrochers, “USTR Cancels South Korea Trade Meeting over Digital Regulation Push,” Politico Pro, December 17, 2025, <https://subscriber.politicopro.com/article/2025/12/ustr-cancels-south-korea-trade-meeting-over-digital-antitrust-push-00696819>.
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